

ACTIVE READING

Using the chapter provided, review the headings, discussion questions, and notes, and draft 3-5 questions you need to answer by doing your reading.

CHAPTER 3

INTENTIONAL TORTS TO PERSON OR PROPERTY

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Every type of tort claim has its own *elements*, or particular points that a plaintiff must prove in order to succeed on that claim. A plaintiff must first allege facts that would establish each of these required elements—in other words, a “prima facie case,” or a case good “on the face of it.” If the plaintiff does not, the judge will dismiss the complaint. The plaintiff must then go on to *prove* the prima facie case of some particular tort. The plaintiff bears the burden of proof on each element.

In this chapter we will explore the required elements of a number of intentional tort claims. In the next chapter we will see a number of defenses that may allow the defendant to escape liability even when a prima facie case has been proved.

There are many types of tort claims. Conceptually, one way to organize these claims is to group them along two dimensions—the interests they protect, and the levels of culpability they require. In terms of interests, tort actions can protect against (1) physical injury to person or property; (2) dignitary and emotional harm; and (3) economic harm. With respect to culpability, tort rules may impose liability for intentional wrongdoing (intent or malice), negligence (lack of reasonable care), and even, in some cases, no failure to use care by the defendant (strict liability). Thomas C. Grey, *Accidental Torts*, 54 VAND. L. REV. 1225 (2001). Our exploration of tort claims begins with causes of action that protect against intended physical injury to person or property.

§ 1. BATTERY

A. ELEMENTS

“The least touching of another in anger is a battery. . . . If any of them use violence against the other, to force his way in a rude inordinate manner, it is a battery. . . .” *Cole v. Turner*, 6 Mod. Rep. 149, 90 Eng. Rep. 958 (Nisi Prius 1704).

MC ELHANEY V. THOMAS

405 P.3d 1214 (Kan. 2017)

STEGALL, JUSTICE:

[Charles Thomas and Emma McElhaney were students at Clay County High School. Thomas played on the baseball team, and McElhaney was the team's manager. The day of the incident, both were in the parking lot headed toward the team bus to travel to a game. Thomas, driving his parents' truck, saw McElhaney, who was walking with another teammate, Andrew Hecker. Thomas approached McElhaney and Hecker from behind. McElhaney heard the truck and moved toward the curb to avoid being hit. The front-passenger tire of the truck then rolled onto McElhaney's feet, trapping her, and making her fall to the ground. When Thomas backed up, McElhaney realized she could neither stand nor walk. Thomas drove McElhaney to the bus to receive medical aid and she was then taken to a hospital.]

The basic facts are not in dispute. Instead, the parties' disagreement centers on Thomas' state of mind. McElhaney testified that... Thomas said, "Oh, my gosh, I'm so sorry. I just meant to bump you." In an affidavit, Adam Slagle, [a passenger in Thomas's truck] likewise claimed Thomas said that "he only meant to bump into Emma with his truck."... Thomas, however, denied ever saying he meant to bump McElhaney. He maintains he merely pulled too close to McElhaney while attempting to park.

[Plaintiff pleaded the intentional tort of battery and sought punitive damages. The district court dismissed that cause of action on the ground that] even if the plaintiff's evidence is viewed in a light most favorable to her, the statement by the defendant that "I only meant to bump into you" does not rise to the level of an intentional tort. Although to act (bump) may have been intentional the resulting injury or intent to injure was not intentional... I believe it's simply horseplay... The [appellate court] affirmed the district court's rulings... [T]he panel concluded that "[t]here is simply no evidence to support a claim that Thomas had any intent to injure McElhaney"... [T]he Court of Appeals found that under either a judgment on the pleadings standard or a summary judgment standard, Thomas was entitled to prevail on McElhaney's battery claim as a matter of law...

ANALYSIS

Boiled down, we perceive the essence of the matter to be whether an "intent to bump" another person with a Ford F-150 truck, if proved, can establish the legally requisite culpable state of mind to sustain both a battery and a punitive damages claim... Therefore, in whatever procedural format the question is embedded (motion for punitive damages, motion for judgment on the pleadings, motion for summary judgment, etc.) the outcome turns on the answer to a purely legal question over which we

exercise plenary review—viz., must McElhaney plead and produce evidence that Thomas intended to cause physical injury or bodily harm in order to present her battery and punitive damages claims to a jury?...

It has regularly been said that an intention to injure is a prerequisite in battery cases. Or, as we stated more recently, the actor must have intended both the act and to cause some kind of injury or damage... [A prior Kansas case] "is consistent with the Restatement (Second) of Torts § 13 (1965), which states that a person will be subject to liability for battery if he or she 'acts intending to cause a harmful or offensive contact with the person of the other' and 'a harmful contact with the person of the other directly or indirectly results.'"

We do not shy from our prior holdings that an intent to injure is a necessary element of the civil tort of battery in Kansas. But the precise nature of the injurious intent necessary to sustain a battery claim must be understood in light of the personal interests protected by the common law tort of battery:

"The original purpose of the courts in providing the action for battery undoubtedly was to keep the peace by affording a substitute for private retribution. The element of personal indignity involved always has been given considerable weight. Consequently, the defendant is liable not only for contacts which do actual physical harm, but also for those relatively trivial ones which are merely offensive and insulting. Spitting in the face is a battery, as is forcibly removing the plaintiff's hat, or any other contact brought about in a rude and insolent manner..."

The defendant may be liable when intending only a joke... The plaintiff is entitled to protection according to the usages of decent society, and offensive contacts, or those which are contrary to all good manners, need not be tolerated. At the same time, in a crowded world, a certain amount of personal contact is inevitable, and must be accepted." Prosser and Keeton on Torts § 9, 41-42 (5th ed. 1984)...

The "intent to injure" element of a civil battery claim can be satisfied in alternative ways—either by (1) an intent to cause a harmful bodily contact, that is, to cause the other physical injury; or by (2) an intent to cause an offensive bodily contact, that is, to invade the other's reasonable sense of personal dignity. Both states of mind are sufficiently culpable to justify imposing civil battery liability for damages...

Given this, we have no difficulty concluding that McElhaney satisfied her initial burden of pleading and producing some evidence that Thomas acted with an intent to injure. Even if he did not intend to cause any physical harm to McElhaney, the intent to bump her with a Ford F-150 truck is sufficient, by itself, to allow a reasonable jury to conclude that he acted with an intent to offend—to invade McElhaney's reasonable sense of personal dignity. The district court erred by effectively granting summary

judgment against McElhaney on her intentional tort claim. . . . McElhaney was entitled to present her claim for punitive damages to the jury solely by virtue of her battery claim. . . .

COHEN V. SMITH, 648 N.E. 2d 329 (Ill. App. Ct. 1995). Patricia Cohen was admitted to St. Joseph Memorial Hospital ("Hospital") to deliver her baby via cesarean section. Cohen and her husband allegedly informed her physician, who in turn advised the Hospital staff, that the couple's religious beliefs prohibited Cohen from being seen unclothed by a male. Cohen's doctor assured her husband that their religious convictions would be respected. During Cohen's cesarean section, Roger Smith, a male nurse on staff at the Hospital, allegedly observed and touched Cohen's naked body. Cohen and her husband filed suit against Nurse Smith and the Hospital. The trial court allowed defendants' motions to dismiss. *Held*, we reverse.

"Liability for battery emphasizes the plaintiff's lack of consent to the touching. . . . Protecting personal integrity has always been viewed as an important basis for battery. . . . As early as 1784, a Pennsylvania defendant was prosecuted for striking the cane of a French ambassador.

The court furthered the distinction between harmful offensive batteries and nonharmful offensive batteries: "As to the assault, this is, perhaps, one of that kind, in which the insult is more to be considered than the actual damage; for, though no great bodily pain is suffered by a blow on the palm of the hand, or the skirt of the coat, yet these are clearly within the definition of assault and battery, and among gentlemen too often induce duelling and terminate in murder." (*Respublica v. De Longchamps* (Pa. 1784), 1 Dall. 111, 1 L.Ed. 59, in Gregory, Kalven, & Epstein, *Cases & Materials on Torts* 904-905 (1977)). . . .

Although most people in modern society have come to accept the necessity of being seen unclothed and being touched by members of the opposite sex during medical treatment, the plaintiffs had not accepted these procedures and, according to their complaint, had informed defendants of their convictions. . . . A person's right to refuse or accept medical care is not one to be interfered with lightly. . . . Accepting as true the plaintiffs' allegations . . . we conclude that the trial court erred in dismissing both the battery and the intentional infliction of emotional distress counts.

NOTES

1. **Elements.** What are the elements of a cause of action for battery? What sources would you look to in order to find these elements?

2. **Lack of intent to harm.** Perhaps the paradigm of battery is an intentional punch in the nose. The defendant in *McElhaney* argued that he

lacked an intent to harm the plaintiff physically, yet the court held that the case must go to the jury. Looking closely at the required elements of battery, why isn't the argument of lack of intent to harm a winning claim?

3. **Testing the rules.** How should the following cases be resolved?

(a) The defendant surgeon was performing a gall-bladder operation. He became frustrated with the operation itself and with the plaintiff, a scrub nurse, who defendant thought was making mistakes. When the plaintiff handed defendant an instrument the surgeon considered inappropriate, he became so exasperated that he grabbed the nurse's shoulder and pulled her face down toward the surgical opening, saying, "Can't you see where I'm working? I'm working in a hole. I need long instruments." *Snyder v. Turk*, 627 N.E.2d 1053 (Ohio Ct. App. 1993).

(b) Plaintiffs' employer refused to allow plaintiffs to bring their own meals to work or let them leave the workplace for meals. Plaintiffs let the employer know that because of religious reasons they could not eat beef-pork meatballs. The employer said it would switch to turkey meatballs, which it did, but it then switched back to beef-pork without letting the employees know. *Kumar v. Gate Gourmet, Inc.*, 325 P.3d 193 (Wash. 2014). *See also* RESTATEMENT (THIRD) OF TORTS: INTENTIONAL TORTS TO PERSONS § 103 illus. 6 (Tentative Draft No. 1, 2015).

4. **Offense.** The Restatement Third of Torts provides that a contact is offensive if either: "(a) the contact offends a reasonable sense of personal dignity; or (b) the contact is highly offensive to the other's unusually sensitive sense of personal dignity, and the actor knows that the contact will be highly offensive to the other." Under section (b), liability will not be imposed if it "would violate public policy" or if "requiring the actor to avoid the contact would be unduly burdensome." RESTATEMENT (THIRD) OF TORTS: INTENTIONAL TORTS TO PERSONS § 103 (Tentative Draft No. 1, 2015). In *Cohen*, could the defendant argue that liability would violate public policy?

5. **Procedure: motion to dismiss in *Cohen*.** The plaintiff in *Cohen* prevailed in overturning the trial court's dismissal. Does that mean that the plaintiff won the case? What if, on remand, the plaintiff can produce no evidence that Nurse Smith knew of Patricia Cohen's wishes? *See Mullins v. Parkview Hospital, Inc.*, 865 N.E.2d 608 (Ind. 2007) (emergency medical technician student intubated the plaintiff and lacerated her esophagus but did not know that plaintiff had refused consent to have student-learners participate in her care; summary judgment granted for the student, but not for the doctors and their practices).

6. **Procedure: summary judgment in *McElhaney*.** The defendant in *McElhaney* originally persuaded the trial court to grant a motion to dismiss. Because the motion incorporated evidence, the Kansas Supreme Court treated it as a summary judgment motion. How does a motion to dismiss differ from a

motion for summary judgment? What happens after the summary judgment ruling has been reversed?

7. **Related statutory claims.** Most tort law is state common law, but in some cases a plaintiff also may have a statutory claim for damages against a defendant who has committed a common law tort. One of the most important statutory claims for conduct that is also a battery (or other intentional torts), is found in one section of the Civil Rights Act of 1871, 42 U.S.C.A. § 1983. Section 1983 claims, as they are called, involve the deprivation of federal constitutional or statutory rights by persons acting under color of state law, such as police officers. An expanded discussion of section 1983 claims and defenses to them, including the defense of qualified immunity, is addressed in Chapter 15.

B. DUAL OR SINGLE INTENT

WHITE V. MUNIZ, 999 P.2d 814 (Colo. 2000). Barbara White placed her 83-year-old grandmother, Helen Everly, in an assisted living facility. Every had progressive dementia of the Alzheimer type. Within a few days of admission, Everly became agitated and occasionally acted aggressively toward others. Sherry Lynn Muniz, a shift supervisor tried to change Everly's adult diaper. Initially Everly refused to allow Muniz to change her diaper, but eventually Muniz thought that Everly relented. However, as Muniz reached toward the diaper, Everly struck Muniz on the jaw and ordered her out of the room. Muniz sued Everly and White as her representative for assault and battery. After the evidence was presented, the trial judge instructed the jury in part as follows:

"The fact that a person may suffer from Dementia, Alzheimer type, does not prevent a finding that she acted intentionally. You may find that she acted intentionally if she intended to do what she did, even though her reasons and motives were entirely irrational. However, she must have appreciated the offensiveness of her conduct."

So instructed, the jury found for Everly and White. The Court of Appeals held the instruction to be error and reversed. *Held*, affirmed.

"State courts and legal commentators generally agree that an intentional tort requires some proof that the tortfeasor intended harm or offense. . . . More recently, some courts around the nation have abandoned this dual intent requirement in an intentional tort setting, that being an intent to contact and an intent that the contact be harmful or offensive, and have required only that the tortfeasor intend a contact with another that results in a harmful or offensive touching. . . . These courts would find intent in contact to the back of a friend that results in a severe, unexpected injury even though the actor did not intend the contact to be harmful or offensive. . . .

Because Colorado law requires a dual intent, we apply here the Restatement's definition of the term. As a result, we reject the arguments of Muniz and find that the trial court delivered an adequate instruction to the jury. Operating in accordance with this instruction, the jury had to find that Everly appreciated the offensiveness of her conduct in order to be liable for the intentional tort of battery. It necessarily had to consider her mental capabilities in making such a finding, including her age, infirmity, education, skill, or any other characteristic as to which the jury had evidence. We presume that the jury "looked into the mind of Everly," and reasoned that Everly did not possess the necessary intent to commit an assault or a battery.

A jury can, of course, find a mentally deficient person liable for an intentional tort, but in order to do so, the jury must find that the actor intended offensive or harmful consequences. As a result, insanity is not a defense to an intentional tort according to the ordinary use of that term, but is a characteristic, like infancy, that may make it more difficult to prove the intent element of battery. . . .

WAGNER V. STATE, 122 P.3d 599 (Utah 2005). While waiting in a department store customer-service line, plaintiff Tracy Wagner was suddenly attacked from behind by Sam Geise, a mentally disabled patient who was brought to the store and accompanied by State employees as a part of a state mental health treatment program. Wagner sued the State for failing to supervise Geise. By statute, the State could not be liable for the patient's conduct if that conduct "arose out of battery." In her suit against the state, plaintiff asserted that Geise's conduct could not legally constitute a battery because battery requires the actor to intend harm or offense through his deliberate contact, an intent Mr. Geise was mentally incompetent to form. The State, on the other hand, argues that the only intent required for battery is simply an intent to make a contact. *Held*, trial court's dismissal of plaintiff's claim against the government is affirmed.

"Utah has adopted the Second Restatement of Torts to define the elements of [battery], including the element of intent. . . . [We] agree with the State that only intent to make contact is necessary. . . . We hold that the actor need not intend that his contact be harmful or offensive in order to commit a battery so long as he deliberately made the contact and so long as that contact satisfies our legal test for what is harmful or offensive. . . .

[A dual intent rule is practically unworkable.] For example, a man who decides to flatter a woman he spots in a crowd with an unpetitioned-for kiss, one of the examples of battery Prosser provides, would find no objection under the Wagners' proposed rule so long as his intentional contact was initiated with no intent to injure or offend. He would be held civilly liable for his conduct only if he intended to harm or offend her

through his kiss. A woman in such circumstances would not enjoy the presumption of the law in favor of preserving her bodily integrity; instead, her right to be free from physical contact with strangers would depend upon whether she could prove that the stranger hoped to harm or offend her through his contact. So long as he could show that he meant only flattery and the communication of positive feelings towards her in stroking her, kissing her, or hugging her, she must be subjected to it and will find no protection for her bodily integrity in our civil law."

NOTES

1. **Single vs. dual intent.** As you can see, state courts are divided about whether battery requires a plaintiff to prove merely 1) that the defendant intended to contact, or also 2) that the defendant intended to harm or offend by that contact. Courts that adopt a single intent rule and courts that adopt a dual intent rule both trace the origins of those rules to the Restatement Second of Torts and Dean Prosser's treatise, which suggests that those authorities are themselves unclear about this requirement.

2. **Subjective standard.** Both single and dual intent are judge by subjective standards—what the defendants themselves actually intended. "This subjective-intent requirement should be contrasted with negligence, which contains an objective-fault requirement." RESTATEMENT (THIRD) OF TORTS: INTENTIONAL TORTS TO PERSONS § 102 (Tentative Draft No. 1, 2015). An objective-fault requirement would ask, *not* what Everly or Geise *themselves* actually intended, but rather what *a reasonable person* in those situations would have intended.

3. **An intent to contact but not to harm or offend.** Single intent would seem to favor plaintiff recoveries when the defendant intended to cause a harmful or offensive contact but the plaintiff cannot prove that the defendant intended the harm or offense. In what kinds of cases might this matter? Look at *White* and *Wagner*. In both cases, because of mental disabilities, the plaintiffs might be unable to prove that the defendants who caused the harmful contact actually intended the harm. These difficulties may also arise in cases involving child defendants. In many other cases, as when a defendant punches a plaintiff in the nose, the difference between single and dual intent will not matter. The Restatement Third of Torts adopts a single intent rule because the rule "affords greater protection to the plaintiff's interest in bodily integrity" and is consistent with a number of cases, particularly in the medical battery context. However, the Restatement acknowledges that "a dual-intent approach is more consistent with the view that liability for battery should exist only when the actor is especially culpable." RESTATEMENT (THIRD) OF TORTS: INTENTIONAL TORTS TO PERSONS § 102 cmt. b (Tentative Draft No. 1, 2015).

4. **Some examples.** Would battery liability exist in a dual intent jurisdiction? In a single intent jurisdiction?

(a) "Stephanie approaches Carol, a new coworker in her office, from behind. 'You look tense!' Stephanie declares, and immediately begins giving Carol a vigorous neck massage. When Carol objects, Stephanie promptly ends the massage. The massage injures Carol's neck and requires her to miss several weeks of work. RESTATEMENT (THIRD) OF TORTS: INTENTIONAL TORTS TO PERSONS § 102 cmt. b, illus. 2.

(b) A deputy sheriff "made physical contact" with a police officer, who the deputy considered to be a friend. The contact to the officer's shoulder, which was variously described, ranging from "lighter than a pat with an open palm" to a "closed fist punch." Unbeknownst to the deputy, the police officer had recently undergone surgery on the shoulder. The contact injured the officer's shoulder, causing more than \$63,000 in expenses for the injuries. All of the parties agreed that the touching was "an intentional act." *City of Lincoln v. Cty. of Lancaster*, 898 N.W.2d 374 (Neb. 2017).

5. **Justice and policy.** Does the single intent rule or the dual intent rule produce a more just outcome in these illustrations? Which rule represents better policy? The issue has provoked strong reactions from judges. See *White v. University of Idaho*, 797 P.2d 108 (Idaho 1990) (Bistlin, J., dissenting) ("The Court's opinion has a chilling effect on any thought of ever again tapping a dancing gent on the shoulder to ask, 'May I?' Today it is learned that so doing is a battery even though no harm or offense is intended. One lives and learns."). Scholars have also disputed the point. Compare Kenneth W. Simons, *A Restatement (Third) of Intentional Torts?*, 48 ARIZ. L. REV. 1061 (2006) (advocating single intent), with 1 DOBBS, HAYDEN & BUBLICK, *THE LAW OF TORTS* § 35 (2d ed. 2011) (backing dual intent). In a single intent battery state, would you expect other limitations to do more work—cutting back plaintiff recovery when the defendant had no intent to harm or offend? In the Restatement Third, as we will see in the next chapter, doctrines of apparent and presumptive consent take on a more active role.

6. **Proving intent.** If defendant says, "I did not mean to harm or offend the plaintiff," is the case over in a dual-intent jurisdiction? The *White v. Muniz* court wrote: "Juries may find it difficult to determine the mental state of an actor, but they may rely on circumstantial evidence in reaching their conclusion. . . . For example, a person of reasonable intelligence knows with substantial certainty that a stone thrown into a crowd will strike someone and result in an offensive or harmful contact to that person. Hence, if an actor of average intelligence performs such an act, the jury can determine that the actor had the requisite intent to cause a harmful or offensive contact, even though the actor denies having such thoughts."

C. THE MEANING OF "INTENT"

GARRATT V. DAILEY

279 P.2d 1091 (Wash. 1955)

HILL, JUSTICE. . . .

Brian Dailey (age five years, nine months) was visiting with Naomi Garratt, an adult and a sister of the plaintiff, Ruth Garratt, likewise an adult, in the back yard of the plaintiff's home, on July 16, 1951. It is plaintiff's contention that she came out into the back yard to talk with Naomi and that, as she started to sit down in a wood and canvas lawn chair, Brian deliberately pulled it out from under her. The only one of the three persons present so testifying was Naomi Garratt. (Ruth Garratt, the plaintiff, did not testify as to how or why she fell.)

The trial court, unwilling to accept this testimony, adopted instead Brian Dailey's version of what happened, [concluding that Brian moved the chair without the purpose to affect the plaintiff but rather to sit in the chair himself, and that when he saw the plaintiff about to sit where the chair had been, he tried unsuccessfully to move it back. Consequently, Brian had no purpose to cause contact.]

It is conceded that Ruth Garratt's fall resulted in a fractured hip and other painful and serious injuries. To obviate the necessity of a retrial in the event this court determines that she was entitled to a judgment against Brian Dailey, the amount of her damage was found to be \$11,000. Plaintiff appeals from a judgment dismissing the action and asks for the entry of a judgment in that amount or a new trial.

In our analysis of the applicable law, we start with the basic premise that Brian, whether five or fifty-five, must have committed some wrongful act before he could be liable for appellant's injuries. . . .

It is urged that Brian's action in moving the chair constituted a battery. . . . In the comment on clause (a), concerning intent for battery] the Restatement says:

"Character of actor's intentions. In order that an act may be done with the intention of bringing about a harmful or offensive contact . . . , the act must be done for the purpose of causing the contact . . . or with knowledge on the part of the actor that such contact . . . is substantially certain to be produced." See, also, Prosser on

prank on her or to embarrass her, or to commit an assault and battery on her would not absolve him from liability if in fact he had such knowledge.

Without such knowledge, there would be nothing wrongful about Brian's act in moving the chair and, there being no wrongful act, there would be no liability.

While a finding that Brian had no such knowledge can be inferred from the findings made, we believe that before the plaintiff's action in such a case should be dismissed there should be no question but that the trial court had passed upon that issue; hence, the case should be remanded for clarifications of the findings to specifically cover the question of Brian's knowledge, because intent could be inferred therefrom.

It will be noted that the law of battery as we have discussed it is the law applicable to adults, and no significance has been attached to the fact that Brian was a child less than six years of age when the alleged battery occurred. The only circumstance where Brian's age is of any consequence is in determining what he knew, and there his experience, capacity, and understanding are of course material. . . .

The cause is remanded for clarification, with instructions to make definite findings on the issue of whether Brian Dailey knew with substantial certainty that the plaintiff would attempt to sit down where the chair which he moved had been, and to change the judgment if the findings warrant it. . . .

NOTES

1. **Subsequent history of the case.** On remand, in a bench trial, the trial court found that the plaintiff was in the act of sitting down when Brian moved the chair, and that Brian knew this. On the basis of the substantial certainty test, the judge found for the plaintiff. This was affirmed on the second appeal, *Garratt v. Dailey*, 304 P.2d 681 (Wash. 1956).

2. **Two forms of intent.** What is the definition of intent accepted by the *Garratt* court? Imagine that defendant hates the plaintiff, sees him at a distance and hurls a stone, hoping to hit the plaintiff but believing that success is extremely unlikely. The stone does in fact hit the plaintiff, however. Is this a battery? Is the intent involved the same intent on which Brian Dailey was held liable?

3. **Defining intent.** The Restatement Third of Torts defines "intent to produce a consequence" as either 1) a "purpose of producing that consequence" or 2) "knowing that the consequence is substantially certain to be produced."

Elevate Your Flashcards!

Describe the concept without using any key words written on the original flashcard.	Draw a visual representation or diagram of the concept.
Create a hypothetical scenario that uses this concept for analysis.	How would you explain this concept to a child or someone who has never heard of it before?
Why is knowledge of this concept important or useful to you?	Identify another concept you've learned that relates to this one. How do they overlap or differ?
Write a common mistake or misunderstanding students might have about this concept—and then correct it.	How would this concept look from the perspective of a plaintiff versus a defendant?
If you saw this concept come up in a real case, what would be the next question or legal issue to consider?	Name a situation where there might be an exception to this concept.
Rewrite this concept as clearly and simply as possible for someone with no legal background.	

WEEKLY UNDERSTANDING BRAIN DUMP

1. What are the three most important concepts you discussed in _____ during the last week?
2. For each concept, jot down everything you can remember about your discussion (NO USING YOUR NOTES!).
3. Compare your brain dump to your notes. What, if any, important points did you miss for each concept?
4. How do the concepts from this week's class fit within the bigger picture of the course? (Talk about this with a classmate/tutor if you're feeling unsure!)

Intentional Torts: Battery and Assault

122. Which of the following scenarios illustrates a claim for battery without an accompanying claim for assault?
- (A) Plaintiff Letitia, riding her motorcycle, was hit by motorist Mart and knocked unconscious. Dr. Doolittle, a physician who was walking near the scene of the accident, rendered emergency care to Letitia without her consent.
 - (B) Before undergoing general anesthesia, plaintiff Sharon reached an agreement with her surgeon, Dr. Spurgeon, saying that she consented to having her appendix removed. Sharon consented to the removal of no other organs. While she was unconscious, Dr. Spurgeon removed her gallbladder as well.
 - (C) Despite being rich, plaintiff Patrick habitually refused to pay his medical bills. His physician, Dr. Proctor, became infuriated by this practice. When Patrick lay on Dr. Proctor's examining table, Dr. Proctor brandished a scalpel and shouted, "I'm going to amputate your left eye!" Patrick was able to deflect Dr. Proctor with the help of a well-aimed judo chop.
 - (D) Plaintiff Cankersore recovered slowly from a back injury with the help of opioid painkillers, to which he became addicted. His treating physician, Dr. Milquetoast, obtained sexual gratification from touching Cankersore, along with threatening to withhold prescriptions for the painkillers. Cankersore agreed to Dr. Milquetoast's touchings believing he would be in grave pain if he did not consent.
123. Dr. Ozzzz, an ophthalmologist, undertook to perform laser surgery to correct nearsightedness in the right eye of Boomhauer. Boomhauer and Ozzzz agreed that the operation would occur under general anesthesia, with Boomhauer unconscious. While Boomhauer was unconscious, Ozzzz decided that Boomhauer's left eye, though less nearsighted, should get laser surgery first. Ozzzz operated on the left eye and did not touch Boomhauer's right eye during this surgery, following his policy of always operating on only one eye at a time unless an emergency existed. The surgery went fine and Boomhauer now has excellent vision in his left eye. Boomhauer nevertheless is considering a tort action against Ozzzz.

Which of the following statements is most accurate?

- (A) Such a claim would be good, because the surgery on the left eye was a wrongful touching.
- (B) Such a claim would be good, because the surgery on the left eye was an unreasonable medical choice.

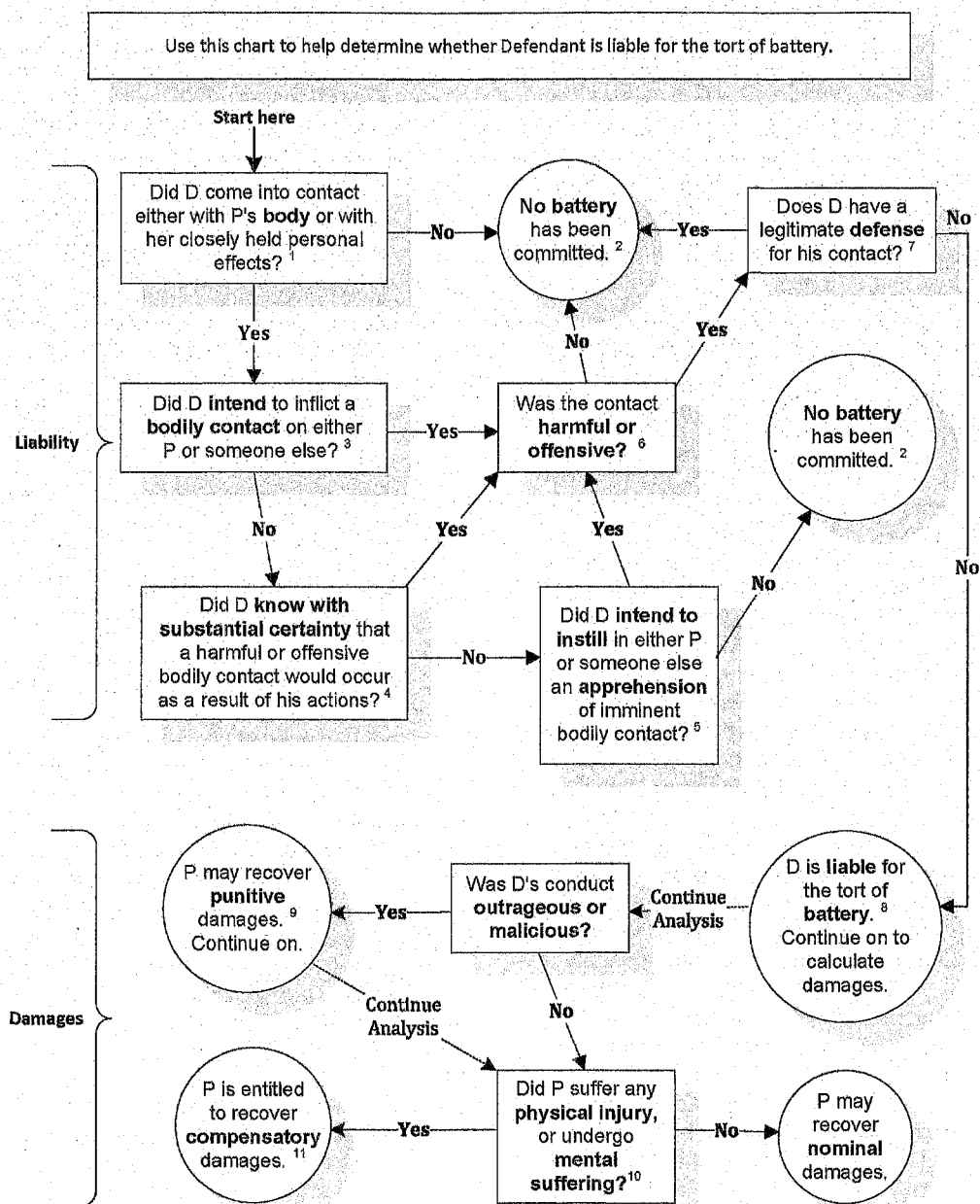
RETRIEVAL MAPPING

Thinking back to your lectures on _____, draw a concept map/flowchart tracking all the analysis you need to go through in thinking through a potential claim for _____.

Now, compare it to the flowchart in your packet.

- 1) What if any elements/analysis did you not remember to include? Add it to your chart (make sure that you pay attention to the Notes.)
- 2) Next, go back through YOUR notes to see what things your professor emphasized) and star those elements/points. Pay special attention to any starred content that you did not remember to include in your chart, and make a note to review it again next week.

Figure 2
Battery



See footnotes on next page

Notes to Figure 2 (Battery)

- ¹ The tort of battery extends beyond actual bodily contact. It includes contact with the plaintiff's clothing, with something she is holding, or with anything else closely associated with her body. Ch. 2 (IV)(D). For the sake of simplicity, we will refer to all of these types of contacts as "bodily contact" in the rest of this flow chart. Note that the contact can be either direct or indirect. For example, D can touch P himself (direct contact), or he can cause P to be touched indirectly, such as by ordering a dog to attack, by using a stun gun, or by throwing a rock at her. D need not even be present when the contact occurs, as long as he intended for the contact to happen. Ch. 2 (IV)(D)(1).
- ² Although no battery has been committed, your inquiry should not end here. Be sure to check out any other torts that may be implicated by the facts. Be especially on the lookout for Assault (Fig. 3) and Negligence (Fig. 6).
- ³ If D thinks that the contact will not be harmful or offensive, but he's wrong about that, the intent requirement is satisfied.
Also, under the doctrine of "transferred intent," the requisite intent will be found where D intended to inflict a bodily contact on someone other than P, but actually inflicted it upon P. Ch. 2 (I)(D).
If D intentionally exceeds the scope of P's consent, this will be battery too. (Example: P gives D, a surgeon, permission to operate on P's toe and D also operates on P's ankle.)
- ⁴ This is a subjective test: D must have believed that the bodily contact was almost certain to occur. Rest. 2d, §8A; Ch. 2 (I)(B).
- ⁵ Example: D swings his fist near P's nose, intending to make P think he'll be hit, but not intending to actually hit him. D has the requisite intent for battery (and if by accident he hits P, he'll be liable for battery).
Also, under the doctrine of "transferred intent," the requisite intent will be found where D intended to instill in someone other than P an apprehension of bodily contact, but actually instilled it in P. Ch. 2 (I)(D).
- ⁶ "Harmful" contact causes pain or bodily damage; "offensive" contact is contact that is damaging to a "reasonable sense of dignity." Ch. 2 (IV)(B). Offensive contact is judged objectively: if an ordinary person would not be offended by the contact, it does not rise to the level of offensive even if P was actually offended. Ch. 2 (IV)(C).
- ⁷ Most-common defenses: consent, self-defense, defense of property, recapture of chattel, arrest.
- ⁸ Check to see if D is also liable for assault. If P saw in advance what was about to happen, there is an assault just before the battery.
- ⁹ Rest. 2d, §908; Ch. 2 (II)(A)(2).
- ¹⁰ Plaintiffs can recover compensatory damages for emotional pain, suffering, or embarrassment, even if they suffer no physical harm. Ch. 2 (IV)(G)(1).
- ¹¹ D will be liable for both foreseeable and unforeseeable consequences of the contact (the "eggshell skull" principle). Ch. 2 (IV)(F).

Sample Law School Exam Wrapper: Post-Mid-term reflection

Course: _____

Exam Score: _____

Date Submitted: _____

PART I. ASSESSING YOURSELF (before receiving your score)

1. Predicted performance

- What grade did you expect to receive on this exam, and why?
- Which questions did you feel most confident about, and why?
- Which questions did you feel least confident about, and why?

2. Exam execution

- How did you manage your time during the exam? Did you have enough time to finish, and did you allocate it appropriately across questions?
- Did you have a clear plan for each question before you started writing?
- What issues did you spot and address? What issues might you have missed?

PART II. ANALYZING YOUR PERFORMANCE (after reviewing your graded exam)

1. Point allocation

- What percentage of your score came from the essay portion versus multiple-choice questions (if applicable)?
- For the essay questions, where did you earn the most points, and where did you lose the most? (e.g., rule statements, application, issue spotting, counterarguments, policy)
- Review the exam answer key or your professor's feedback. Where did your analysis deviate most significantly?

2. Mistakes and weaknesses

- **Issue spotting:** Did you fail to spot a major issue? Did you spot an issue that wasn't there?
- **Rule statement:** Were your rule statements accurate, concise, and complete?
- **Analysis/application:** Did you analyze all key facts in the prompt? Did you explain *why* the rule applied to the facts, or did you just state a conclusion?
- **Structure:** Was your essay well-organized (e.g., using IRAC for every issue)?
- **Understanding:** Was there a core concept that you fundamentally misunderstood? If so, what was it?

3. Strengths and successes

- Identify a question or part of a question where you performed particularly well. What went right?
- Did you use your time or structure effectively on any question?
- Were there any parts of your exam where you felt your studying paid off?

PART THREE: EVALUATING YOUR STUDY STRATEGY

1. Preparation time and methods

- How many days/weeks in advance did you begin preparing for this exam?
- Approximately how much time did you spend studying in total?
- What specific study methods did you use? (e.g., outlining, practice exams, flashcards, study groups, commercial supplements)

2. Method effectiveness

- Which of your study methods was the most effective in helping you prepare for this exam?
- Which study methods were the least effective?
- Reflecting on your performance, were there any specific topics you should have spent more time on?

PART FOUR: CREATING AN ACTION PLAN FOR NEXT TIME

1. Adjustments to study habits

- Name at least three specific things you will do differently for your next exam. Be specific.
- *For example:* "I will not start outlining until I have completed all the practice problems" or "I will spend 30% more time on practice essays under timed conditions."

2. Course material focus

- What are the 1–2 most important substantive topics or skills (like rule synthesis) that you need to review and master before the final or next exam?

3. Accountability

- How will you hold yourself accountable for implementing these new strategies? (e.g., scheduling a meeting with an academic success dean, working with a study group, setting up a study plan)

ADDITIONAL RESOURCES

Study Aids Research Guide: <https://law-uh.libguides.com/studyaids>

CALI Lessons: <https://www.cali.org/user/register> (authorization code: HOUSTUstu90)

CONTACT INFORMATION

Prof. Drake, Assistant Dean for Legal Research Services & Director of the Initiative for Advancing Evidence-Based Legal Education: adrake2@central.uh.edu

Lisa Cohen, Director for Academic Success: lecohen@central.uh.edu



LEARN TO STUDY USING... Retrieval Practice

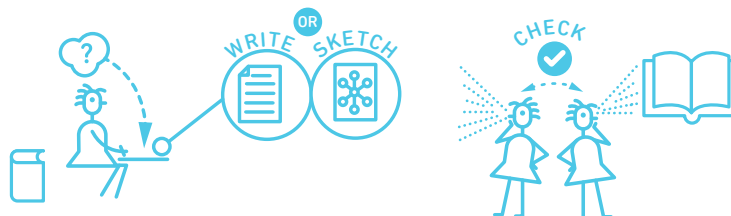
PRACTICE BRINGING INFORMATION TO MIND

LEARNINGSIENTISTS.ORG



HOW TO DO IT

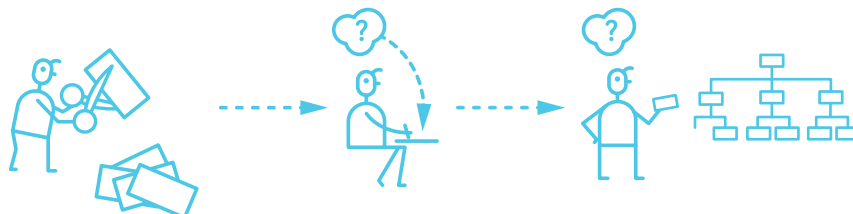
Put away your class materials, and write or sketch everything you know. Be as thorough as possible. Then, check your class materials for accuracy and important points you missed.



Take as many practice tests as you can get your hands on. If you don't have ready-made tests, try making your own and trading with a friend who has done the same.



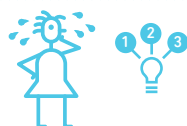
You can also make flashcards. Just make sure you practice recalling the information on them, and go beyond definitions by thinking of links between ideas.



HOLD ON!



Retrieval practice works best when you go back to check your class materials for accuracy afterward.



Retrieval is hard! If you're struggling, identify the things you've missed from your class materials, and work your way up to recalling it on your own with the class materials closed.



Don't only recall words and definitions. Make sure to recall main ideas, how things are related or different from one another, and new examples.

RESEARCH

[Read more about retrieval practice as a study strategy](#)

Roediger, H. L., Putnam, A. L., & Smith, M. A. (2011). Ten benefits of testing and their applications to educational practice. In J. Mestre & B. Ross (Eds.), *Psychology of learning and motivation: Cognition in education*, (pp. 1-36). Oxford: Elsevier.



LEARN TO STUDY USING...

Spaced Practice

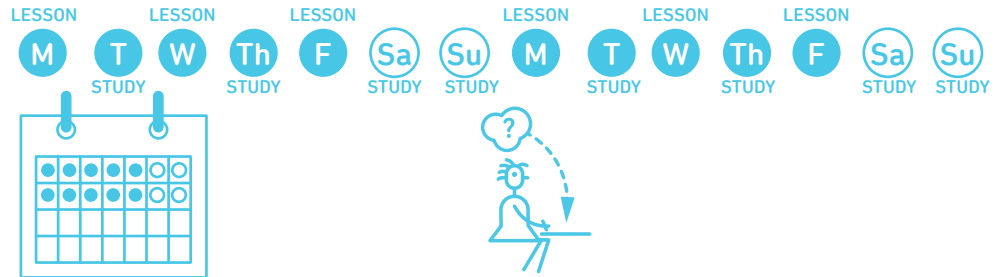
SPACE OUT YOUR STUDYING OVER TIME

LEARNINGSOCIETISTS.ORG

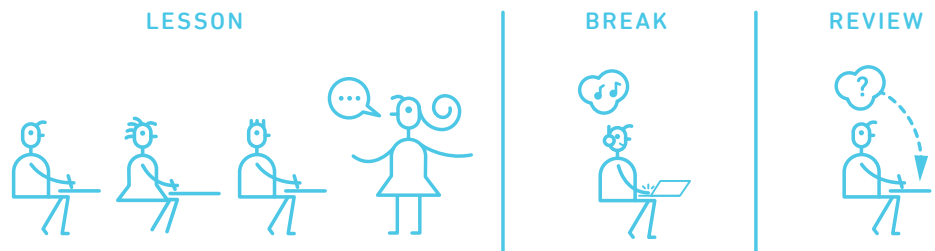


HOW TO DO IT

Start planning early for exams, and set aside a little bit of time every day. Five hours spread out over two weeks is better than the same five hours all at once.



Review information from each class, but not immediately after class.



After you review information from the most recent class, make sure to go back and study important older information to keep it fresh.



HOLD ON!

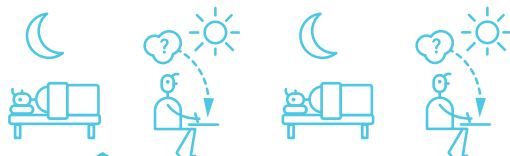
TESTING 1 2 SPACING 3 SKETCHING



When you sit down to study, make sure you are using effective study strategies rather than just re-reading your class notes.



This may seem difficult and you may forget some information from day to day, but this is actually a good thing! This forces you to retrieve information from memory (see Retrieval Practice poster).



Create small spaces (a few days) and do a little bit over time, so that it adds up!

RESEARCH

[Read more about spaced practice as a study strategy](#)

Benjamin, A. S., & Tullis, J. [2010]. What makes distributed practice effective? *Cognitive Psychology*, 61, 228-247.



LEARNINGSIENTISTS.ORG

LEARN TO STUDY USING...

Interleaving

SWITCH BETWEEN IDEAS WHILE YOU STUDY



HOW TO DO IT

Switch between ideas during a study session. Don't study one idea for too long.

TOPIC
A



TOPIC
B



TOPIC
C



Go back over the ideas again in different orders to strengthen your understanding.

TOPICS
A B C



STUDY
SESSION
1

TOPICS
C B A



STUDY
SESSION
2

TOPICS
A C B



STUDY
SESSION
3

Make links between different ideas as you switch between them.



HOLD ON!



While it's good to switch between ideas, don't switch too often, or spend too little time on any one idea; you need to make sure you understand them.



Interleaving will feel harder than studying the same thing for a long time. But don't worry - this is actually helpful to your learning!

RESEARCH

[Read more about interleaving as a study strategy](#)

Rohrer, D. (2012). Interleaving helps students distinguish among similar concepts. *Educational Psychology Review*, 24, 355-367.



Elaboration

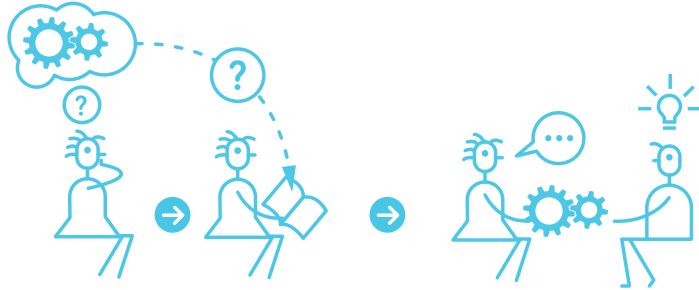
EXPLAIN AND DESCRIBE IDEAS WITH MANY DETAILS

LEARNINGSIENTISTS.ORG

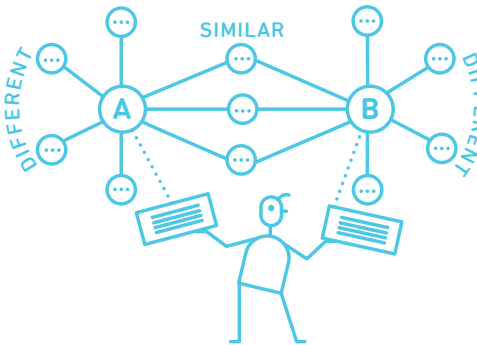


HOW TO DO IT

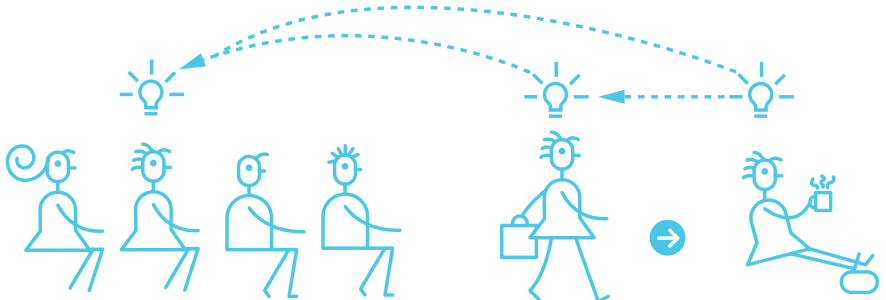
Ask yourself questions while you are studying about how things work and why, and then find the answers in your class materials and discuss them with your classmates.



As you elaborate, make connections between different ideas to explain how they work together. Take two ideas and think of ways they are similar and different.



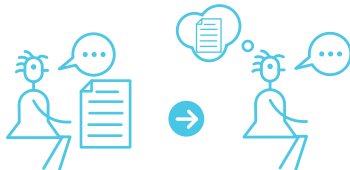
Describe how the ideas you are studying apply to your own experiences or memories. As you go through your day, make connections to the ideas you are learning in class.



HOLD ON!



Make sure the way you are explaining and describing an idea is accurate. Don't overextend the elaborations, and always check your class materials or ask your teacher.



Work your way up so that you can describe and explain without looking at your class materials.

RESEARCH

[Read more about elaboration as a study strategy](#)

McDaniel, M. A., & Donnelly, C. M. (1996). Learning with analogy and elaborative interrogation. *Journal of Educational Psychology*, 88, 508-519.

Wong, B. Y. L. (1985). Self-questioning instructional research: A review. *Review of Educational Research*, 55, 227-268.



LEARNINGSIENTISTS.ORG

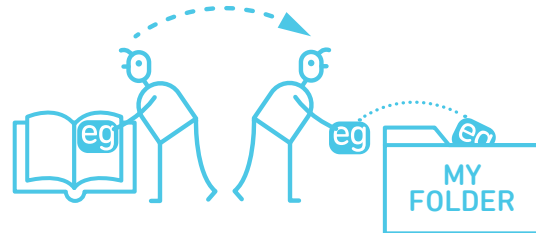
LEARN TO STUDY USING... Concrete Examples

USE SPECIFIC EXAMPLES TO UNDERSTAND ABSTRACT IDEAS



HOW TO DO IT

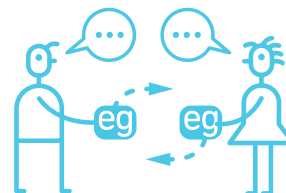
Collect examples your teacher has used, and look in your class materials for as many examples as you can find.



Make the link between the idea you are studying and each example, so that you understand how the example applies to the idea.



Share examples with friends, and explain them to each other for added benefits.



HOLD ON!



You may find examples on the internet that are not used appropriately. Make sure your examples are correct - check with your teacher.



Ultimately, creating your own relevant examples will be the most helpful for learning.

RESEARCH

Read more about
[concrete examples](#)
as a study strategy

Rawson, K. A., Thomas, R. C., & Jacoby, L. L. (2014). The power of examples: Illustrative examples enhance conceptual learning of declarative concepts. *Educational Psychology Review*, 27, 483-504.



LEARN TO STUDY USING...

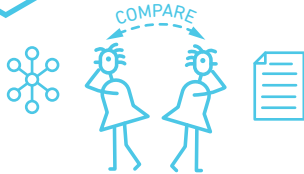
Dual Coding

COMBINE WORDS AND VISUALS

LEARNINGSIENTISTS.ORG



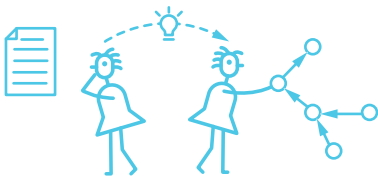
HOW TO DO IT



Look at your class materials and find visuals. Look over the visuals and compare to the words.



Look at visuals, and explain in your own words what they mean.

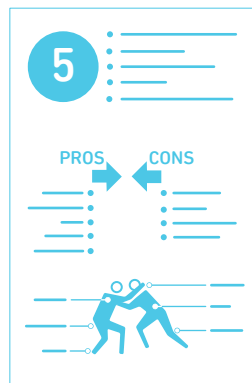


Take information that you are trying to learn, and draw visuals to go along with it.

HOLD ON!

Try to come up with different ways to represent the information visually, for example an infographic, a timeline, a cartoon strip, or a diagram of parts that work together.

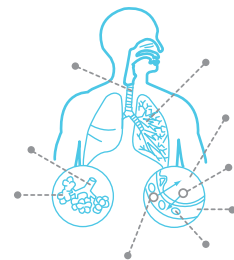
INFOGRAPHIC



CARTOON STRIP



DIAGRAM



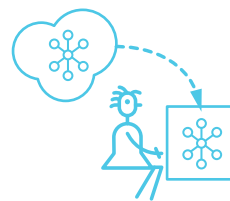
GRAPHIC ORGANIZER



TIMELINE



Work your way up to drawing what you know from memory.



RESEARCH

Read more about dual coding as a study strategy

Mayer, R. E., & Anderson, R. B. (1992). The instructive animation: Helping students build connections between words and pictures in multimedia learning. *Journal of Educational Psychology*, 4, 444-452.